

STATE OF NEW YORK

652--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sen. GIANARIS -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to establishing a license to sell liquor on premises commonly known as a for-profit club

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The alcoholic beverage control law is amended by adding a
2 new section 64-f to read as follows:

3 § 64-f. License to sell liquor on premises commonly known as a for-
4 profit club. 1. Any person may make an application to the state liquor
5 authority to operate a "for-profit club" which is operated solely for a
6 recreational, social, patriotic, political, benevolent, communal work-
7 space, corporate dining space, or athletic purpose.

8 2. Such application shall be in such form and shall contain such
9 information as shall be required by the liquor authority and shall be
10 accompanied by a check or draft in the amount required by this article
11 for such license. The fee for such license shall be twenty thousand
12 dollars annually.

13 3. Section fifty-four of this chapter shall control so far as applica-
14 ble the procedure in connection with such application. For-profit clubs
15 that apply for a license pursuant to this section are also authorized to
16 apply for a temporary retail permit as provided for in section ninety-
17 seven-a of this chapter.

18 4. Such for-profit club license shall in form and in substance be a
19 license to the person specifically licensed to operate a for-profit club
20 and sell liquor at retail exclusively to members in good standing and
21 their guests under the by-laws of the for-profit club to be consumed on

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 the premises specifically licensed. Such license shall also be deemed to
2 include a license to sell liquor, wine, beer, cider, mead and/or braggot
3 at retail exclusively to members in good standing and their guests under
4 the by-laws of the for-profit club to be consumed on the premises under
5 the same terms and conditions, without the payment of any additional
6 fee.

7 5. (a) A license under this section shall be required of any person,
8 corporation, partnership, company, or any other for-profit entity which
9 is the owner, lessee or occupant of a premises used exclusively for the
10 for-profit club purposes, and which is operated solely for a recreation-
11 al, social, patriotic, political, benevolent, communal workspace, corpo-
12 rate dining space, or athletic purpose. A "member" of a for-profit club
13 shall mean a person who whether a charter member or admitted in agree-
14 ment with the by-laws of the for-profit club, has become a bona fide
15 member thereof, who maintains membership by the payment of annual dues
16 in a bona fide manner in accordance with the by-laws of the for-profit
17 club and whose name and address is entered on the list of members of the
18 for-profit club. A for-profit club must have one hundred or more
19 members.

20 (b) For the purpose of a for-profit club license issued pursuant to
21 this section solely for use as corporate dining space for their employ-
22 ees and clients shall:

23 (i) include only such space directly used for corporate dining
24 purposes where food and beverages are regularly available to employees,
25 clients, and guests;

26 (ii) authorize that licensees do not have to meet member requirements;

27 (iii) authorize contracts with a third party licensed by the authority
28 to provide food and beverages so long as any third party contract is
29 disclosed to the authority; and

30 (iv) be responsible for maintaining records, filing all necessary
31 applications, and providing other such documentation required or deemed
32 necessary to be submitted to the authority.

33 6. The authority shall consider all of the following in determining
34 whether public convenience and advantage and the public interest will be
35 promoted by the granting of a license pursuant to this section:

36 (a) the number, classes and character of licenses in proximity to the
37 location and in the particular municipality or subdivision thereof;

38 (b) evidence that applicants have secured all necessary licenses and
39 permits from the state and all other governing bodies;

40 (c) the effect that the granting of the license will have on vehicular
41 traffic and parking in the proximity of the location;

42 (d) the existing noise level at the location and any increase in noise
43 level that would be generated by the proposed premises;

44 (e) the history of liquor violations and reported criminal activity at
45 the proposed premises;

46 (f) any purpose or intention of discrimination by the applicant or any
47 individual, corporation, partnership, company, or any other for-profit
48 entity which is the owner, lessee or occupant of the premises to be
49 licensed as a for-profit club premises; and

50 (g) any other factors specified by law or regulation that are relevant
51 to determine the public convenience or advantage and necessary to find
52 that the granting of such license shall be in the public interest.

53 7. No for-profit club license shall be granted for any premises which
54 shall be:

1 (a) on the same street or avenue and within two hundred feet of a
2 building occupied exclusively as a school, church, synagogue or other
3 place of worship; or

4 (b) in a city, town or village having a population of twenty thousand
5 or more within five hundred feet of an existing premises licensed and
6 operating pursuant to the provisions of this section, or within five
7 hundred feet of three or more existing premises licensed and operating
8 pursuant to this section and sections sixty-four, sixty-four-a, sixty-
9 four-b, sixty-four-c, and/or sixty-four-d of this article.

10 (c) The measurements in paragraphs (a) and (b) of this subdivision are
11 to be taken in straight lines from the center of the nearest entrance of
12 the premises sought to be licensed to the center of the nearest entrance
13 of such school, church, synagogue or other place of worship or to the
14 center of the nearest entrance of each such premises licensed and oper-
15 ating pursuant to this section and sections sixty-four, sixty-four-a,
16 sixty-four-b, sixty-four-c, and/or sixty-four-d of this article; except
17 that no license shall be denied to any premises at which a license under
18 this chapter has been in existence continuously from a date prior to the
19 date when a building on the same street or avenue and within two hundred
20 feet of said premises has been occupied exclusively as a school, church,
21 synagogue or other place of worship; and except that no license shall be
22 denied to any premises, which is within five hundred feet of an existing
23 premises licensed and operating pursuant to the provisions of this
24 section or which is within five hundred feet of three or more existing
25 premises licensed and operating pursuant to this section and sections
26 sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, and/or
27 sixty-four-d of this article, at which a license under this chapter has
28 been in existence continuously on or prior to November first, nineteen
29 hundred ninety-three. The liquor authority, in its discretion, may
30 authorize the removal of any such licensed premises to a different
31 location on the same street or avenue, within two hundred feet of said
32 school, church, synagogue or other place of worship, provided that such
33 new location is not within a closer distance to such school, church,
34 synagogue or other place of worship.

35 (d) Within the context of this subdivision, the word "entrance" shall
36 mean a door of a school, of a house of worship, or of premises licensed
37 and operating pursuant to this section and sections sixty-four, sixty-
38 four-a, sixty-four-b, sixty-four-c, and/or sixty-four-d of this article
39 or of the premises sought to be licensed, regularly used to give ingress
40 to students of the school, to the general public attending the place of
41 worship, and to patrons or guests of the premises licensed and operating
42 pursuant to this section and sections sixty-four, sixty-four-a, sixty-
43 four-b, sixty-four-c, and/or sixty-four-d of this article or of the
44 premises sought to be licensed, except that where a school or house of
45 worship or premises licensed and operating pursuant to this section and
46 sections sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, and/or
47 sixty-four-d of this article or the premises sought to be licensed is
48 set back from a public thoroughfare, the walkway or stairs leading to
49 any such door shall be deemed an entrance; and the measurement shall be
50 taken to the center of the walkway or stairs at the point where it meets
51 the building line or public thoroughfare. A door which has no exterior
52 hardware, or which is used solely as an emergency or fire exit, or for
53 maintenance purposes, or which leads directly to a part of a building
54 not regularly used by the general public or patrons, is not deemed an
55 "entrance".

(e) Notwithstanding the provisions of paragraph (b) of this subdivision, the authority may issue a license pursuant to this section for a premises which shall be within five hundred feet of an existing premises licensed and operating pursuant to the provisions of this section or within five hundred feet of three or more existing premises licensed and operating pursuant to this section and sections sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, and/or sixty-four-d of this article if, after consultation with the municipality or community board, it determines that granting such license would be in the public interest. Before it may issue any such license, the authority shall conduct a hearing, upon notice to the applicant and the municipality or community board, and shall state and file in its office its reasons therefor. The hearing may be rescheduled, adjourned or continued, and the authority shall give notice to the applicant and the municipality or community board of any such rescheduled, adjourned or continued hearing. Before the authority issues any said license, the authority or one or more of the commissioners thereof may, in addition to the hearing required by this paragraph, also conduct a public meeting regarding said license, upon notice to the applicant and the municipality or community board. The public meeting may be rescheduled, adjourned or continued, and the authority shall give notice to the applicant and the municipality or community board of any such rescheduled, adjourned or continued public meeting. Notice to the municipality or community board shall mean written notice mailed by the authority to such municipality or community board at least fifteen days in advance of any hearing scheduled pursuant to this paragraph. Upon the request of the authority, any municipality or community board may waive the fifteen day notice requirement. No premises having been granted a license pursuant to this section shall be denied a renewal of such license upon the grounds that such premises are within five hundred feet of an existing premises licensed and operating pursuant to the provisions of this section or within five hundred feet of a building or buildings wherein three or more premises are licensed and operating pursuant to this section and sections sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, and/or sixty-four-d of this article.

(f) Within the context of this subdivision, a building occupied as a place of worship does not cease to be "exclusively" occupied as a place of worship by incidental uses that are not of a nature to detract from the predominant character of the building as a place of worship, such uses which include, but which are not limited to: (i) the conduct of legally authorized games of bingo or other games of chance held as a means of raising funds for the not-for-profit religious organization which conducts services at the place of worship or for other not-for-profit organizations or groups; use of the building for fund-raising performances by or benefitting the not-for-profit religious organization which conducts services at the place of worship or other not-for-profit organizations or groups; (ii) the use of the building by other religious organizations or groups for religious services or other purposes; the conduct of social activities by or for the benefit of the congregants; the use of the building for meetings held by organizations or groups providing bereavement counseling to persons having suffered the loss of a loved one, or providing advice or support for conditions or diseases including, but not limited to, alcoholism, drug addiction, cancer, cerebral palsy, Parkinson's disease, or Alzheimer's disease; (iii) the use of the building for blood drives, health screenings, health information meetings, yoga classes, exercise classes or other activities intended to promote the health of the congregants or other persons; and (iv) use of

the building by non-congregant members of the community for private social functions. The building occupied as a place of worship does not cease to be "exclusively" occupied as a place of worship where the not-for-profit religious organization occupying the place of worship accepts the payment of funds to defray costs related to another party's use of the building.

8. All other provisions of this chapter relative to licenses to sell liquor at retail for consumption on the premises shall apply as far as applicable.

9. For purposes of this section, for-profit club licensees as authorized herein shall be responsible for any violations of this chapter or the rules of the authority occurring while the license is in effect. Liability under the provisions of sections 11-100 and 11-101 of the general obligations law shall accrue to the licensee.

10. All for-profit club licensees shall be subject to such rules and regulations by the authority as is deemed necessary and are in conformity with the provisions of this chapter.

§ 2. Subdivision 1 of section 110-b of the alcoholic beverage control law, as amended by chapter 560 of the laws of 2011, the opening paragraph as amended by section 1 of part H of chapter 55 of the laws of 2024, paragraphs (c) and (d) as amended and paragraph (e) as added by chapter 106 of the laws of 2022, is amended to read as follows:

1. Not more than two hundred seventy days before filing any of the following applications, an applicant shall notify the municipality in which the premises is located of such applicant's intent to file such an application:

(a) for a license issued pursuant to section fifty-five, fifty-five-a, sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d, sixty-four-f, eighty-one or eighty-one-a of this chapter;

(b) for a renewal under section one hundred nine of this chapter of a license issued pursuant to section fifty-five, fifty-five-a, sixty-four, sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f, eighty-one or eighty-one-a of this chapter if the premises is located within the city of New York;

(c) for approval of an alteration under section ninety-nine-d of this chapter if the premises is located within the city of New York and licensed pursuant to section fifty-five, fifty-five-a, sixty-four, sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f, eighty-one or eighty-one-a of this chapter;

(d) for approval of a substantial corporate change under section ninety-nine-d of this chapter if the premises is located within the city of New York and licensed pursuant to section fifty-five, fifty-five-a, sixty-four, sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f, eighty-one or eighty-one-a of this chapter; or

(e) for a temporary retail permit issued under paragraph (b) of subdivision one of section ninety-seven-a of this chapter where the establishment is to be licensed pursuant to section fifty-five, fifty-five-a, sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d, sixty-four-f, eighty-one or eighty-one-a of this chapter located in a city with a population of one million or more people. If an applicant subject to this paragraph shall, after filing an application for a retail license and providing proper notice for such application pursuant to paragraph (a) of this subdivision, subsequently file an application for a temporary retail permit pursuant to section ninety-seven-a of this chapter at the same premises, such applicant must file additional notice pursuant to this paragraph; provided, however, such notice will be

1 effective at the later of its proper service under this section or thir-
2 ty days from the date proper notice was served under paragraph (a) of
3 this subdivision for the license at the same premises.

4 § 3. Subdivision 3 of section 17 of the alcoholic beverage control
5 law, as amended by section 8 of chapter 522 of the laws of 2018, is
6 amended to read as follows:

7 3. To revoke, cancel or suspend for cause any license or permit issued
8 under this chapter and/or to impose a civil penalty for cause against
9 any holder of a license or permit issued pursuant to this chapter. Any
10 civil penalty so imposed shall not exceed the sum of ten thousand
11 dollars as against the holder of any retail permit issued pursuant to
12 sections ninety-five, ninety-seven, ninety-eight, ninety-nine-d, and
13 paragraph f of subdivision one of section ninety-nine-b of this chapter,
14 and as against the holder of any retail license issued pursuant to
15 sections fifty-three-a, fifty-four, fifty-four-a, fifty-five, fifty-
16 five-a, sixty-three, sixty-four, sixty-four-a, sixty-four-b,
17 sixty-four-c, sixty-four-f, seventy-six-f, seventy-nine, eighty-one and
18 eighty-one-a of this chapter, and the sum of thirty thousand dollars as
19 against the holder of a license issued pursuant to sections thirty,
20 thirty-one, fifty-three, sixty-one-a, sixty-one-b, seventy-six, seven-
21 ty-six-a, and seventy-eight of this chapter, provided that the civil
22 penalty against the holder of a wholesale license issued pursuant to
23 section fifty-three of this chapter shall not exceed the sum of ten
24 thousand dollars where that licensee violates provisions of this chapter
25 during the course of the sale of beer at retail to a person for consump-
26 tion at home, and the sum of one hundred thousand dollars as against the
27 holder of any license issued pursuant to sections fifty-one, sixty-one,
28 and sixty-two of this chapter. Any civil penalty so imposed shall be in
29 addition to and separate and apart from the terms and provisions of the
30 bond required pursuant to section one hundred twelve of this chapter.
31 Provided that no appeal is pending on the imposition of such civil
32 penalty, in the event such civil penalty imposed by the division remains
33 unpaid, in whole or in part, more than forty-five days after written
34 demand for payment has been sent by first class mail to the address of
35 the licensed premises, a notice of impending default judgment shall be
36 sent by first class mail to the licensed premises and by first class
37 mail to the last known home address of the person who signed the most
38 recent license application. The notice of impending default judgment
39 shall advise the licensee: (a) that a civil penalty was imposed on the
40 licensee; (b) the date the penalty was imposed; (c) the amount of the
41 civil penalty; (d) the amount of the civil penalty that remains unpaid
42 as of the date of the notice; (e) the violations for which the civil
43 penalty was imposed; and (f) that a judgment by default will be entered
44 in the supreme court of the county in which the licensed premises are
45 located, or other court of civil jurisdiction or any other place
46 provided for the entry of civil judgments within the state of New York
47 unless the division receives full payment of all civil penalties due
48 within twenty days of the date of the notice of impending default judg-
49 ment. If full payment shall not have been received by the division with-
50 in thirty days of mailing of the notice of impending default judgment,
51 the division shall proceed to enter with such court a statement of the
52 default judgment containing the amount of the penalty or penalties
53 remaining due and unpaid, along with proof of mailing of the notice of
54 impending default judgment. The filing of such judgment shall have the
55 full force and effect of a default judgment duly docketed with such
56 court pursuant to the civil practice law and rules and shall in all

1 respects be governed by that chapter and may be enforced in the same
2 manner and with the same effect as that provided by law in respect to
3 execution issued against property upon judgments of a court of record. A
4 judgment entered pursuant to this subdivision shall remain in full force
5 and effect for eight years notwithstanding any other provision of law.

6 § 4. Subdivision 3 of section 17 of the alcoholic beverage control
7 law, as amended by section 9 of chapter 522 of the laws of 2018, is
8 amended to read as follows:

9 3. To revoke, cancel or suspend for cause any license or permit issued
10 under this chapter and/or to impose a civil penalty for cause against
11 any holder of a license or permit issued pursuant to this chapter. Any
12 civil penalty so imposed shall not exceed the sum of ten thousand
13 dollars as against the holder of any retail permit issued pursuant to
14 sections ninety-five, ninety-seven, ninety-eight, ninety-nine-d, and
15 paragraph f of subdivision one of section ninety-nine-b of this chapter,
16 and as against the holder of any retail license issued pursuant to
17 sections fifty-three-a, fifty-four, fifty-four-a, fifty-five, fifty-
18 five-a, sixty-three, sixty-four, sixty-four-a, sixty-four-b,
19 sixty-four-c, sixty-four-f, seventy-six-f, seventy-nine, eighty-one, and
20 eighty-one-a of this chapter, and the sum of thirty thousand dollars as
21 against the holder of a license issued pursuant to sections thirty,
22 thirty-one, fifty-three, sixty-one-a, sixty-one-b, seventy-six, seven-
23 ty-six-a and seventy-eight of this chapter, provided that the civil
24 penalty against the holder of a wholesale license issued pursuant to
25 section fifty-three of this chapter shall not exceed the sum of ten
26 thousand dollars where that licensee violates provisions of this chapter
27 during the course of the sale of beer at retail to a person for consump-
28 tion at home, and the sum of one hundred thousand dollars as against the
29 holder of any license issued pursuant to sections fifty-one, sixty-one
30 and sixty-two of this chapter. Any civil penalty so imposed shall be in
31 addition to and separate and apart from the terms and provisions of the
32 bond required pursuant to section one hundred twelve of this chapter.
33 Provided that no appeal is pending on the imposition of such civil
34 penalty, in the event such civil penalty imposed by the division remains
35 unpaid, in whole or in part, more than forty-five days after written
36 demand for payment has been sent by first class mail to the address of
37 the licensed premises, a notice of impending default judgment shall be
38 sent by first class mail to the licensed premises and by first class
39 mail to the last known home address of the person who signed the most
40 recent license application. The notice of impending default judgment
41 shall advise the licensee: (a) that a civil penalty was imposed on the
42 licensee; (b) the date the penalty was imposed; (c) the amount of the
43 civil penalty; (d) the amount of the civil penalty that remains unpaid
44 as of the date of the notice; (e) the violations for which the civil
45 penalty was imposed; and (f) that a judgment by default will be entered
46 in the supreme court of the county in which the licensed premises are
47 located, or other court of civil jurisdiction, or any other place
48 provided for the entry of civil judgments within the state of New York
49 unless the division receives full payment of all civil penalties due
50 within twenty days of the date of the notice of impending default judg-
51 ment. If full payment shall not have been received by the division with-
52 in thirty days of mailing of the notice of impending default judgment,
53 the division shall proceed to enter with such court a statement of the
54 default judgment containing the amount of the penalty or penalties
55 remaining due and unpaid, along with proof of mailing of the notice of
56 impending default judgment. The filing of such judgment shall have the

1 full force and effect of a default judgment duly docketed with such
2 court pursuant to the civil practice law and rules and shall in all
3 respects be governed by that chapter and may be enforced in the same
4 manner and with the same effect as that provided by law in respect to
5 execution issued against property upon judgments of a court of record. A
6 judgment entered pursuant to this subdivision shall remain in full force
7 and effect for eight years notwithstanding any other provision of law.

8 § 5. This act shall take effect on the one hundred eightieth day after
9 it shall have become a law; provided however, that the amendments to
10 subdivision 3 of section 17 of the alcoholic beverage control law made
11 by section three of this act shall be subject to the expiration and
12 reversion of such section pursuant to section 4 of chapter 118 of the
13 laws of 2012, as amended, when upon such date the provisions of section
14 four of this act shall take effect.

15 Effective immediately, the addition, amendment and/or repeal of any
16 rule or regulation necessary for the implementation of this act on its
17 effective date are authorized to be made and completed on or before such
18 effective date.